

24STCV31291 24STCV31291

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 24STCV31291 Hearing Date: July 14, 2026 Dept: 735

:Taquan-Rahshe :Gullett-El v. Yang et al.

Defendants George Gascon and Nathan Hochman's

Demurrer to First Amended Complaint

BACKGROUND

On November 26, 2024, Plaintiff

:Taquan-Rahshe :Gullett-El (Plaintiff) filed a complaint against defendants

Scott Andrew Yang, David W. Slayton, George Gascon, Nathan Hochman and T. Blasi alleging 30 causes of action.

On August 8, 2025, Plaintiff filed a

"Verified Bill of First Amended Complaint in Equity," asserting causes of action for (1) breach of mandatory duty; (2) breach of trust; (3) breach of fiduciary duty; and (4) specific performance.

LEGAL STANDARD

Where a demurrer is sustained, leave to amend

must be allowed where there is a reasonable possibility of successful amendment. The burden is on the plaintiff to show the court that a pleading can be amended successfully.

DISCUSSION

Defendants demur to the first amended

complaint on the grounds that the Court lacks subject matter jurisdiction to

grant the relief requested, Defendants are immune from suit and Plaintiff has failed to allege facts supporting any causes of the causes of action.

The Court agrees that Plaintiff has failed to allege facts supporting any of the causes of action. Under the "facts" section of the FAC, Plaintiff repeatedly states that Defendants "did fraudulently conceal Beneficiary's Affidavit of Rescission and Motion to Dismiss by discarding them and not filing and docketing them in Case ATPMA085516-01." Plaintiff makes reference to hundreds of cases and statutes, and states that Plaintiff is a beneficiary of some sort of trust of which Defendants are trustees. The Court cannot discern the facts giving rise to this action, the causes of action alleged, or the remedies requested. The Court need not and cannot determine if the Court lacks subject matter jurisdiction or if Defendants are immune from liability. The Court sustains Defendants' demurrer. Because Plaintiff has failed to oppose this demurrer to offer amendments that could cure the first amended complaint's defects, the Court declines leave to amend.

CONCLUSION

The Court sustains Defendants' demurrer without leave to amend.

Defendants to give notice.